

Attachment H

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:20 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Publicity Notice to Witnesses from Turning Point USA

From: Jeff Gray [REDACTED]@utahcounty.gov>
Sent: Tuesday, December 16, 2025 6:02 PM
To: [REDACTED]@tpusa.com
Cc: [REDACTED]@utahcounty.gov>
Subject: Publicity Notice to Witnesses from Turning Point USA

Attached is our notice to potential Turning Point USA witnesses regarding public out-of-court statements. Please forward them to the witnesses identified in the notice. Let me know if you have any questions. Thank you.



Justice for all

Jeffrey S. Gray
Utah County Attorney
100 East Center Street, Ste. 2100
Provo, Utah 84606
Tele: (801) 851-[REDACTED]
Email: jeffgray@utahcounty.gov



OFFICE OF THE UTAH COUNTY ATTORNEY

Jeffrey S. Gray, Utah County Attorney

Chad E. Grunander, Chief Deputy

Christopher D. Ballard, Chief of Staff

Haley Christensen, Office Manager

Tammy Paynter, Confidential Assistant

Christine Scott, Major Crimes Division Chief

Ryan McBride, General Crimes Division Chief

Paul Jones, Civil Division Chief

Steven G. Adams, Investigations Division Chief

December 16, 2025

██████████
Counsel for Turning Point USA

Email: ██████████@tpusa.com

NOTICE OF PUBLICITY ORDER

(in compliance with orders of the Fourth District Court)

The Utah County Attorney's Office has identified ██████████ and ██████████ from Turning Point USA as potential witnesses at the trial or other hearings in the case against defendant Tyler Robinson. In compliance with the district court's Publicity Order entered September 16, 2025, as clarified by an order entered December 15, 2025, we hereby give this notice concerning public statements made by witnesses outside the courtroom. This notice is directed, and should be forwarded, to ██████████, and **anyone else from Turning Point USA who was present at its Utah Valley University event on September 10, 2025.**

Rule 3.6(a) of the Utah Rules of Professional Conduct prohibits attorneys from "mak[ing] an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Although this rule only applies to attorneys' statements, unfair prejudice can also result from a witness's public statements made outside the courtroom, especially in criminal cases. The Comment to Rule 3.6 identifies certain public statements that "are more likely than not to have a material prejudicial effect" on a criminal proceeding. They include:

- opinions about the guilt or innocence of the defendant;
- statements about a defendant's admissions or his failure or refusal to talk to authorities;
- statements about the character, credibility, reputation, or criminal record of the defendant;
- statements about testimony a witness might give;
- statements about any physical evidence which may or may not be introduced at trial;
- and any other statements that could risk jeopardizing a fair trial.

I have attached Rule 3.6 and its official Comment for a full listing of such statements and further explanation of the rule.

Please know that the Utah County Attorney's Office and the prosecutors assigned to this case are committed to having a fair trial by an impartial jury, which will also ensure that any resulting conviction withstands scrutiny on appeal. Adherence to the provisions of Rule 3.6 help achieve that goal.



ABOUT THE DISTRICT COURT'S ORDERS

After the State filed criminal charges against defendant Tyler Robinson, the district court ordered the lawyers for both the prosecution and defendant Tyler Robinson to “abide strictly by Rule 3.6 of the Utah Rules of Professional Conduct,” which governs attorneys’ statements made about the case outside the courtroom (“extrajudicial statements”). In its Publicity Order, the court also ordered the parties’ lawyers to “not intentionally, knowingly, or recklessly permit [any] witness ... to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6.” “To that end,” the court ordered our Office as well as the defense lawyers to “inform all witnesses ... about the prohibitions contained in [the] order.”

In an order entered December 15, 2025, the court clarified that its Publicity Order “does not regulate the behavior of any person who is not an attorney associated with this case,” but only “regulates the behavior of attorneys” on the case. The Publicity Order thus “requires the attorneys to *inform* witnesses about the prohibitions in the publicity order” to “deter [them] from making prejudicial statements.” The court ruled that giving such notification “is a necessary step” for the parties’ attorneys to “not intentionally, knowingly, or recklessly permit[] witnesses from making prejudicial statements.”

In compliance with the district court’s orders, this notice is given to witnesses whom the prosecution team “has a good faith belief will be called to testify at a hearing or trial” in this case. Please feel free to contact our office with any questions.

Sincerely,

A handwritten signature in blue ink that reads "Jeffrey S. Gray".

Utah County Attorney
Jeffrey S. Gray

attachments: Rule 3.6 + Comments;
Protection Order re: Pre-trial and Trial Publicity; and
Ruling and Order Granting the State’s Motion to Clarify Court’s Pre-Trial and Trial Publicity Order

Rules of Professional Conduct
Rule 3.6. Trial Publicity

(a) A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

(b) Notwithstanding paragraph (a), a lawyer may state:

(1) the claim, offense or defense involved and, except when prohibited by law, the identity of the persons involved;

(2) information contained in a public record;

(3) that an investigation of a matter is in progress;

(4) the scheduling or result of any step in litigation;

(5) a request for assistance in obtaining evidence and information necessary thereto;

(6) a warning of danger concerning the behavior of a person involved, when there is reason to believe that there exists the likelihood of substantial harm to an individual or to the public interest; and

(7) in a criminal case, in addition to subparagraphs (1) through (6):

(i) the identity, residence, occupation and family status of the accused;

(ii) if the accused has not been apprehended, information necessary to aid in apprehension of that person;

(iii) the fact, time and place of arrest; and

(iv) the identity of investigating and arresting officers or agencies and the length of the investigation.

(c) Notwithstanding paragraph (a), a lawyer may make a statement that a reasonable lawyer would believe is required to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the lawyer's client. A statement made pursuant to this paragraph shall be limited to such information as is necessary to mitigate the recent adverse publicity.

(d) No lawyer associated in a firm or government agency with a lawyer subject to paragraph (a) shall make a statement prohibited by paragraph (a).

Credits

[Repealed and readopted effective April 1, 1997. Amended effective November 1, 2005.]

Editors' Notes**COMMENT**

[1] It is difficult to strike a balance between protecting the right to a fair trial and safeguarding the right of free expression. Preserving the right to a fair trial necessarily entails some curtailment of the information that may be disseminated about a party prior to trial, particularly where trial by jury is involved. If there were no such limits, the result would be the practical nullification of the protective effect of the rules of forensic decorum and the exclusionary rules of evidence. On the other hand, there are vital social interests served by the free dissemination of information about events having legal consequences and about legal proceedings themselves. The public has a right to know about threats to its safety and measures aimed at ensuring its security. It also has a legitimate interest in the conduct of judicial proceedings, particularly in matters of general public concern. Furthermore, the subject matter of legal proceedings is often of direct significance in debate and deliberation over questions of public policy.

[2] Special rules of confidentiality may validly govern proceedings in juvenile, domestic relations and mental disability proceedings, and perhaps other types of litigation. Rule 3.4(c) requires compliance with such rules.

[3] This Rule sets forth a basic general prohibition against a lawyer's making statements that the lawyer knows or should know will have a substantial likelihood of materially prejudicing an adjudicative proceeding. Recognizing that the public value of informed commentary is great and the likelihood of prejudice to a proceeding by the commentary of a lawyer who is not involved in the proceeding is small, this Rule applies only to lawyers who are, or who have been, involved in the investigation or litigation of a case and their associates.

[4] Paragraph (b) identifies specific matters about which a lawyer's statements would not ordinarily be considered to present a substantial likelihood of material prejudice and should not in any event be considered prohibited by the general prohibition of paragraph (a). Paragraph (b) is not intended to be an exhaustive listing of the subjects upon which a lawyer may make a statement, but statements on other matters may be subject to paragraph (a).

[5] There are, on the other hand, certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

(i) the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;

(ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;

(iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;

(iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;

(v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or

(vi) the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty.

[6] Another relevant factor in determining prejudice is the nature of the proceeding involved. Criminal jury trials will be most sensitive to extrajudicial speech. Civil trials may be less sensitive. Nonjury hearings and arbitration proceedings may be even less affected. This Rule will still place limitations on prejudicial comments in these cases, but the likelihood of prejudice may be different depending on the type of proceeding.

[7] Finally, extrajudicial statements that might otherwise raise a question under this Rule may be permissible when they are made in response to statements made publicly by another party, another party's lawyer or third persons, where a reasonable lawyer would believe a public response is required in order to avoid prejudice to the lawyer's client. When prejudicial statements have been publicly made by others, responsive statements may have the salutary effect of lessening any resulting adverse impact on the adjudicative proceeding. Such responsive statements should be limited to contain only such information as is necessary to mitigate undue prejudice created by the statements made by others.

[8] See Rule 3.8(f) for additional duties of prosecutors in connection with extrajudicial statements about criminal proceedings.

Current with amendments received through November 15, 2025. Some rules may be more current, see credits for details.

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**PROTECTION ORDER
RE: PRE-TRIAL AND TRIAL
PUBLICITY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson is charged with one count of aggravated murder and other felonies.

This case has generated and is likely to continue to generate significant pre-trial and trial publicity. That publicity can compromise Defendant Tyler James Robinson's right to due process of law as well as both parties' rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

To protect the parties' fundamental rights, the court, on its own motion, issues the following:

PROTECTION ORDER

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way shall abide strictly by Rule 3.6. of the Utah Rules of Professional Conduct. Rule 3.6 prohibits a lawyer from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Utah R. Prof. Cond. 3.6(a).

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case shall not intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

This protection order applies to lawyers who are not participating in the investigation or litigation of this case, but who are associated with the Utah County Attorney's office or associated with defense counsels' firm or firms. *See* Utah R. Prof. Cond. 3.6(d). Court staff is also ordered to not make public statements that would violate the provisions of this order.

This order does not prohibit lawyers from making statements permitted by Rule 3.6. *See* Utah R. Prof. Cond. 3.6(b)(c).

Dated this 16th day of September, 2025.

BY THE COURT:



Judge Tony F. Graf Jr.
District Court Judge



**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING
THE STATE'S MOTION TO
CLARIFY COURT'S PRE-TRIAL
AND TRIAL PUBLICITY ORDER**

Case No. 251403576
Judge Tony F. Graf, Jr.

The court issued a Protection Order Regarding Pre-Trial and Trial Publicity in this case. (Dkt. 23). The order prohibits attorneys who are associated with the prosecution and defense of this case from

intentionally, knowingly, or recklessly permit[ing] a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all *witnesses*, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

(Dkt. 23) (emphasis added).

The State moves to amend or clarify the court's use of the word "witness" as used in the publicity order because it is vague, ambiguous, and overbroad. (Dkts. 167, 204). The State asserts that there are over 3,000 lay witnesses of the alleged homicide. The State does not know if it must inform each potential and possible witness of the prohibitions in the order or whether the order applies only to witnesses who are members of the attorneys' teams, such as investigators or experts.

Due to the potential confusion, the court grants the State's motion and offers the following clarification: The word "witness" as used in the order applies to all witnesses who are part of the

prosecution and defense teams. This includes any witness, including lay witnesses, whom the prosecution or defense has a good faith belief will be called to testify at a hearing or trial.

The court also clarifies that the publicity order, as written, regulates the behavior of attorneys who are associated with the defense team or the Utah County Attorney's Office. It requires the attorneys to abide by Rule 3.6 and, in order to deter non-attorneys from making prejudicial statements, requires the attorneys to *inform* witnesses about the prohibitions in the publicity order. Informing witnesses about the prohibitions in the publicity order is a necessary step toward not intentionally, knowingly, or recklessly permitting witnesses from making prejudicial statements. The publicity order does not regulate the behavior of any person who is not an attorney associated with this case.

This is the order of the court for the matters addressed herein.¹

Dated this 15th day of December, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



¹ Defense counsel represents that they intend to file a motion to amend the publicity order. The court will address defense counsel's motion when it is filed and briefing is completed.

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:20 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Publicity Notice to Erika Kirk

From: Jeff Gray [REDACTED]@utahcounty.gov>
Sent: Tuesday, December 16, 2025 6:29 PM
To: [REDACTED]@nmfalawfirm.com
Cc: [REDACTED]@utahcounty.gov>
Subject: Publicity Notice to Erika Kirk

Please forward the attached publicity notice to [REDACTED] which is provided as ordered by the district court. We have identified Ms. [REDACTED] as a potential witness at trial. She will almost certainly appear as a witness at the penalty phase of the trial, and perhaps at the guilt phase of trial to testify generally about Turning Point USA and Charlie Kirk. Please let me know if you have any questions. Thank you.



Jeffrey S. Gray
Utah County Attorney
100 East Center Street, Ste. 2100
Provo, Utah 84606
Tele: (801) 851-[REDACTED]
Email: jeffgray@utahcounty.gov



OFFICE OF THE UTAH COUNTY ATTORNEY

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Ryan McBride, General Crimes Division Chief

Paul Jones, Civil Division Chief

Steven G. Adams, Investigations Division Chief

December 16, 2025

██████████
Counsel for ██████████

Email: ██████████@nmfalawfirm.com

NOTICE OF PUBLICITY ORDER

(in compliance with orders of the Fourth District Court)

The Utah County Attorney's Office has identified ██████████ as a potential witness at the trial or other hearings in the case against defendant Tyler Robinson. In compliance with the district court's Publicity Order entered September 16, 2025, as clarified by an order entered December 15, 2025, we hereby give this notice concerning public statements made by witnesses outside the courtroom. This notice is directed, and should be forwarded, to Erika Kirk.

Rule 3.6(a) of the Utah Rules of Professional Conduct prohibits attorneys from "mak[ing] an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Although this rule only applies to attorneys' statements, unfair prejudice can also result from a witness's public statements made outside the courtroom, especially in criminal cases. The Comment to Rule 3.6 identifies certain public statements that "are more likely than not to have a material prejudicial effect" on a criminal proceeding. They include:

- opinions about the guilt or innocence of the defendant;
- statements about a defendant's admissions or his failure or refusal to talk to authorities;
- statements about the character, credibility, reputation, or criminal record of the defendant;
- statements about testimony a witness might give;
- statements about any physical evidence which may or may not be introduced at trial;
- and any other statements that could risk jeopardizing a fair trial.

I have attached Rule 3.6 and its official Comment for a full listing of such statements and further explanation of the rule.

Please know that the Utah County Attorney's Office and the prosecutors assigned to this case are committed to having a fair trial by an impartial jury, which will also ensure that any resulting conviction withstands scrutiny on appeal. Adherence to the provisions of Rule 3.6 help achieve that goal.



ABOUT THE DISTRICT COURT'S ORDERS

After the State filed criminal charges against defendant Tyler Robinson, the district court ordered the lawyers for both the prosecution and defendant Tyler Robinson to “abide strictly by Rule 3.6 of the Utah Rules of Professional Conduct,” which governs attorneys’ statements made about the case outside the courtroom (“extrajudicial statements”). In its Publicity Order, the court also ordered the parties’ lawyers to “not intentionally, knowingly, or recklessly permit [any] witness ... to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6.” “To that end,” the court ordered our Office as well as the defense lawyers to “inform all witnesses ... about the prohibitions contained in [the] order.”

In an order entered December 15, 2025, the court clarified that its Publicity Order “does not regulate the behavior of any person who is not an attorney associated with this case,” but only “regulates the behavior of attorneys” on the case. The Publicity Order thus “requires the attorneys [on the case] to *inform* witnesses about the prohibitions in the publicity order” to “deter [them] from making prejudicial statements.” The court ruled that giving such notification “is a necessary step” for the parties’ attorneys to “not intentionally, knowingly, or recklessly permit[] witnesses from making prejudicial statements.”

In compliance with the district court’s orders, this notice is given to witnesses whom the prosecution team “has a good faith belief will be called to testify at a hearing or trial” in this case. Please feel free to contact our office with any questions.

Sincerely,

A handwritten signature in blue ink that reads "Jeffrey S. Gray".

Utah County Attorney
Jeffrey S. Gray

attachments: Rule 3.6 + Comment;
Protection Order re: Pre-trial and Trial Publicity; and
Ruling and Order Granting the State’s Motion to Clarify Court’s Pre-Trial and Trial Publicity Order

Rules of Professional Conduct
Rule 3.6. Trial Publicity

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(b) Notwithstanding paragraph (a), a lawyer may state:

(1) the claim, offense or defense involved and, except when prohibited by law, the identity of the persons involved;

(2) information contained in a public record;

(3) that an investigation of a matter is in progress;

(4) the scheduling or result of any step in litigation;

(5) a request for assistance in obtaining evidence and information necessary thereto;

(6) a warning of danger concerning the behavior of a person involved, when there is reason to believe that there exists the likelihood of substantial harm to an individual or to the public interest; and

(7) in a criminal case, in addition to subparagraphs (1) through (6):

(i) the identity, residence, occupation and family status of the accused;

(ii) if the accused has not been apprehended, information necessary to aid in apprehension of that person;

(iii) the fact, time and place of arrest; and

(iv) the identity of investigating and arresting officers or agencies and the length of the investigation.

(c) Notwithstanding paragraph (a), a lawyer may make a statement that a reasonable lawyer would believe is required to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the lawyer's client. A statement made pursuant to this paragraph shall be limited to such information as is necessary to mitigate the recent adverse publicity.

(d) No lawyer associated in a firm or government agency with a lawyer subject to paragraph (a) shall make a statement prohibited by paragraph (a).

Credits

[Repealed and readopted effective April 1, 1997. Amended effective November 1, 2005.]

Editors' Notes**COMMENT**

[1] It is difficult to strike a balance between protecting the right to a fair trial and safeguarding the right of free expression. Preserving the right to a fair trial necessarily entails some curtailment of the information that may be disseminated about a party prior to trial, particularly where trial by jury is involved. If there were no such limits, the result would be the practical nullification of the protective effect of the rules of forensic decorum and the exclusionary rules of evidence. On the other hand, there are vital social interests served by the free dissemination of information about events having legal consequences and about legal proceedings themselves. The public has a right to know about threats to its safety and measures aimed at ensuring its security. It also has a legitimate interest in the conduct of judicial proceedings, particularly in matters of general public concern. Furthermore, the subject matter of legal proceedings is often of direct significance in debate and deliberation over questions of public policy.

[2] Special rules of confidentiality may validly govern proceedings in juvenile, domestic relations and mental disability proceedings, and perhaps other types of litigation. Rule 3.4(c) requires compliance with such rules.

[3] This Rule sets forth a basic general prohibition against a lawyer's making statements that the lawyer knows or should know will have a substantial likelihood of materially prejudicing an adjudicative proceeding. Recognizing that the public value of informed commentary is great and the likelihood of prejudice to a proceeding by the commentary of a lawyer who is not involved in the proceeding is small, this Rule applies only to lawyers who are, or who have been, involved in the investigation or litigation of a case and their associates.

[4] Paragraph (b) identifies specific matters about which a lawyer's statements would not ordinarily be considered to present a substantial likelihood of material prejudice and should not in any event be considered prohibited by the general prohibition of paragraph (a). Paragraph (b) is not intended to be an exhaustive listing of the subjects upon which a lawyer may make a statement, but statements on other matters may be subject to paragraph (a).

[5] There are, on the other hand, certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

(i) the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;

(ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect or that person's refusal or failure to make a statement;

(iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;

(iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;

(v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or

(vi) the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty.

[6] Another relevant factor in determining prejudice is the nature of the proceeding involved. Criminal jury trials will be most sensitive to extrajudicial speech. Civil trials may be less sensitive. Nonjury hearings and arbitration proceedings may be even less affected. This Rule will still place limitations on prejudicial comments in these cases, but the likelihood of prejudice may be different depending on the type of proceeding.

[7] Finally, extrajudicial statements that might otherwise raise a question under this Rule may be permissible when they are made in response to statements made publicly by another party, another party's lawyer or third persons, where a reasonable lawyer would believe a public response is required in order to avoid prejudice to the lawyer's client. When prejudicial statements have been publicly made by others, responsive statements may have the salutary effect of lessening any resulting adverse impact on the adjudicative proceeding. Such responsive statements should be limited to contain only such information as is necessary to mitigate undue prejudice created by the statements made by others.

[8] See Rule 3.8(f) for additional duties of prosecutors in connection with extrajudicial statements about criminal proceedings.

Current with amendments received through November 15, 2025. Some rules may be more current, see credits for details.

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**PROTECTION ORDER
RE: PRE-TRIAL AND TRIAL
PUBLICITY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson is charged with one count of aggravated murder and other felonies.

This case has generated and is likely to continue to generate significant pre-trial and trial publicity. That publicity can compromise Defendant Tyler James Robinson's right to due process of law as well as both parties' rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

To protect the parties' fundamental rights, the court, on its own motion, issues the following:

PROTECTION ORDER

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way shall abide strictly by Rule 3.6. of the Utah Rules of Professional Conduct. Rule 3.6 prohibits a lawyer from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Utah R. Prof. Cond. 3.6(a).

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case shall not intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

This protection order applies to lawyers who are not participating in the investigation or litigation of this case, but who are associated with the Utah County Attorney's office or associated with defense counsels' firm or firms. *See* Utah R. Prof. Cond. 3.6(d). Court staff is also ordered to not make public statements that would violate the provisions of this order.

This order does not prohibit lawyers from making statements permitted by Rule 3.6. *See* Utah R. Prof. Cond. 3.6(b)(c).

Dated this 16th day of September, 2025.

BY THE COURT:



Judge Tony F. Graf Jr.
District Court Judge



**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING
THE STATE'S MOTION TO
CLARIFY COURT'S PRE-TRIAL
AND TRIAL PUBLICITY ORDER**

Case No. 251403576
Judge Tony F. Graf, Jr.

The court issued a Protection Order Regarding Pre-Trial and Trial Publicity in this case. (Dkt. 23). The order prohibits attorneys who are associated with the prosecution and defense of this case from

intentionally, knowingly, or recklessly permit[ing] a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all *witnesses*, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

(Dkt. 23) (emphasis added).

The State moves to amend or clarify the court's use of the word "witness" as used in the publicity order because it is vague, ambiguous, and overbroad. (Dkts. 167, 204). The State asserts that there are over 3,000 lay witnesses of the alleged homicide. The State does not know if it must inform each potential and possible witness of the prohibitions in the order or whether the order applies only to witnesses who are members of the attorneys' teams, such as investigators or experts.

Due to the potential confusion, the court grants the State's motion and offers the following clarification: The word "witness" as used in the order applies to all witnesses who are part of the

prosecution and defense teams. This includes any witness, including lay witnesses, whom the prosecution or defense has a good faith belief will be called to testify at a hearing or trial.

The court also clarifies that the publicity order, as written, regulates the behavior of attorneys who are associated with the defense team or the Utah County Attorney's Office. It requires the attorneys to abide by Rule 3.6 and, in order to deter non-attorneys from making prejudicial statements, requires the attorneys to *inform* witnesses about the prohibitions in the publicity order. Informing witnesses about the prohibitions in the publicity order is a necessary step toward not intentionally, knowingly, or recklessly permitting witnesses from making prejudicial statements. The publicity order does not regulate the behavior of any person who is not an attorney associated with this case.

This is the order of the court for the matters addressed herein.¹

Dated this 15th day of December, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



¹ Defense counsel represents that they intend to file a motion to amend the publicity order. The court will address defense counsel's motion when it is filed and briefing is completed.

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:28 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Letter to Kirk witnesses

Chad,
The attachments are what I had [REDACTED] send out to all of the witnesses listed below. The actual emails are found in the J: drive as follows: [REDACTED]. It looks like there were some 25 emails sent out with the attachments.

From: Ryan McBride
Sent: Monday, December 15, 2025 4:26 PM
To: [REDACTED]@UtahCounty.gov>; [REDACTED]@utahcounty.gov>
Subject: Letter to Kirk witnesses

[REDACTED] and [REDACTED],
The judge ordered us to notify witnesses of his pre-trial publicity order.

I have presumptively identified a handful of witnesses we may call at the preliminary hearing. This list will grow as we identify more and as we approach prelim and trial, but here is what I have so far.

Will you please send the attached letter (via email would be preferable and save the outgoing email in the correspondence folder), along with the text of rule 3.6 and the pre-trial publicity order to the following:

Witness	Report
	Lay Crime Scene Witnesses
[REDACTED]	23-01, 23-02
[REDACTED]	2025-23000468 228/229 "[REDACTED] 1102"
[REDACTED]	2025-23000468 226/229 "[REDACTED] 1102"
[REDACTED] (TPUSA)	
[REDACTED]	266O-SU- 4130859_0000163

	On scene officers	
[REDACTED], UVU PD	08-01	
[REDACTED], UVUPD	08-01	
[REDACTED], USUPD	USU Incident Report 25-U9771	
[REDACTED], USUPD		
	On Scene CSI	
[REDACTED] SBI	3-01	
[REDACTED] UCSO		
[REDACTED] SBI CSI	3-01	
SA [REDACTED] FBI	3-01	
[REDACTED], UBFS	C2025-3433	
[REDACTED], UBFS	C2025-3433	
[REDACTED], FBI	04-01	
[REDACTED], ME		
	[REDACTED]	
[REDACTED]	10-01	
[REDACTED]		
[REDACTED]	12-02	
[REDACTED]	13-01	
	CSI – lab work	
[REDACTED], ATF DNA lab	20-01	

ATF Lab	2025-W-000401(1) Firearms report